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Case Number: 24STCV16130 Hearing Date: August 21, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: 08/21/2026

CASE NUMBER: 24STCV16130

CASE NAME: PATRICIA EASON vs DIGNITY COMMUNITY CARE, A C...

MOVING PARTY: Defendants DIGNITY HEALTH,
CALIFORNIA HOSPITAL MEDICAL CENTER FOUNDATION AND DIGNITY COMMUNITY CARE dba
CALIFORNIA HOSPITAL MEDICAL CENTER (incorrectly sued as DIGNITY HEALTH CORP
SERVICES, CALIFORNIA HOSPITAL MEDICAL CENTER, AND DIGNITY HEALTH-CALIFORNIA
HOSPITAL MEDICAL CENTER)

OPPOSING PARTY: Plaintiff Patricia Eason

PROCEEDING: Motion for summary judgment/summary adjudication

RULING SUMMARY: Defendant Dignity Health, California
Hospital Medical Center Foundation and Dignity Community Care dba California
Hospital Medical Center's Motion for Summary Judgment is denied.

Defendant Dignity Health, California
Hospital Medical Center Foundation and Dignity Community Care dba California
Hospital Medical Center's Motion for Summary Adjudication is granted as to the Sixth
Cause of Action (Retaliation in Violation of CFRA), Seventh Cause of Action
(Discrimination in Violation of CFRA), Tenth Cause of Action (Retaliation for
Whistleblower Action in Violation of Lab. Code § 1102.5) and punitive damages;

and denied as to the First Cause of Action (Failure to Reasonably Accommodate Disability (Gov. Code § 12940(m)), Second Cause of Action (Failure to Engage in the Interactive Process, Gov. Code § 12940(n), Third Cause of Action (Disability Discrimination in Violation of Gov. Code § 12940(a)), Fourth Cause of Action (Retaliation in Violation of Gov. Code § 12940(h)), Fifth Cause of Action (Failure to Prevent Discrimination in Violation of Gov. Code § 12940(k)), Eighth Cause of Action (Disability Based Harassment in Violation of FEHA), and Ninth Cause of Action (Wrongful Discharge in Violation of Public Policy).

Background

On June

27, 2024, plaintiff Patricia Eason ("Plaintiff") filed a Complaint against defendants Dignity Health, California Hospital Medical Center Foundation and Dignity Community Care dba California Hospital Medical Center, incorrectly sued as Dignity Health Corp Services, California Hospital Medical Center, and Dignity Health-California Hospital Medical Center ("Defendant"), alleging causes of action for (1) Failure to Reasonably Accommodate Disability (Gov. Code § 12940(m)); (2) Failure to Engage in the Interactive Process, Gov. Code § 12940(n); (3) Disability Discrimination in Violation of Gov. Code § 12940(a); (4) Retaliation in Violation of Gov. Code § 12940(h); (5) Failure to Prevent Discrimination in Violation of Gov. Code § 12940(k); (6) Retaliation in Violation of CFRA; (7) Discrimination in Violation of CFRA; (8) Disability Based Harassment in Violation of FEHA; (9) Wrongful Discharge in Violation of Public Policy; and (10) Retaliation for Whistleblower Action in Violation of Lab. Code § 1102.5

Plaintiff

alleges as follows: on or about June 2016, she was hired by Defendants as a Licensed Vocational Nurse ("LVN"); on or about June 2019, she was transferred to the Emergency Service Department, entitling her to a LVN pay increase; on or about October 3, 2019, Plaintiff sustained an injury while working for Defendants and was precluded from heavy work with avoidance of lifting over 30 pounds and avoidance of repetitive bending, stooping, but was also advised that disability does not preclude her from returning to work as an LVN; Plaintiff informed Defendants that she would need heart surgery, which would require two to three weeks off from work; Defendant terminated her on or about July 13, 2022, stating, "you were deemed to have permanent working restrictions and no accommodations/alternative work was found available within your department or position. Since you cannot return to your primary position, the next step would be to apply for other positions

you are qualified for.” Plaintiff contends that Defendants’ refusal to allow her to continue in her position with her restrictions and to accommodate her with reassignment constitute a failure to accommodate in violation of the Fair Employment and Housing Act (“FEHA”).

On

October 03, 2024, Defendant filed its Answer. On March 05, 2025, Plaintiff filed her First Amended Complaint (“FAC”), alleging the same causes of action against Defendant.

On

February 19, 2026, Defendant filed this Motion for Summary Judgment or, in the alternative, Summary Adjudication. On July 31, 2026, Plaintiff filed her Opposition. On August 10, 2026, Defendants filed their Reply.

motion for
summary judgment or, in the alternative, summary adjudication

LEGAL STANDARD

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (Aguilar v. Atlantic Richfield Co., (2001) 25 Cal.4th 826, 843.) Code Civ. Proc. §437c(c) “requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.) “The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings.” (Juge v. County of Sacramento, (1993) 12 Cal.App.4th 59, 67 [citing FPI Development, Inc. v. Nakashima, (1991) 231 Cal. App. 3d 367, 381-382].)

As to each claim as framed by the complaint, the defendant

moving for summary judgment must satisfy the initial burden of proof by presenting facts to negate an essential element, or to establish a defense. (Code Civ. Proc. § 437c(p)(2); *Scalf v. D. B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1520.) Courts “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (*Dore v. Arnold Worldwide, Inc.* (2006) 39 Cal.4th 384, 389.)

Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 166.)

OBJECTIONS

A.

Declaration of Lilly Fernandez

Objection 1 [Paragraph 3, 2:7-14]

– Overruled.

Objection 2 [Paragraph 3, 2:7-14]

– Overruled.

Objection 3 [Paragraph 3, 2:7-14]

– Overruled.

Objection 4 [Paragraph 3, 2:7-14]

– Overruled.

DISCUSSION

A.

First through Fifth Causes of
Action

Defendants

first argue that Plaintiff's First through Fifth Causes of Action fail because Plaintiff

remains employed, was not working while she could not perform the essential functions of the position (UMF Nos. 3, 8, 12-13), was assisted by third-party company DMG for accommodations (UMF Nos. 15-19), was granted time off (UMF No. 22), and was offered to transfer to another position with Defendant's hospital or at another affiliated hospital (UMF Nos. 20-21, 23). Defendant asserts that it has a non-discriminatory reason that Plaintiff could not return to her position: Plaintiff was unable to perform the essential functions of the position. Defendant argues that no adverse employment action occurred.

Exhibit

A is an email directed to Plaintiff from Karina Ramirez, a human resources business partner, with Defendant's letterhead. It reads:

The physical activity requirements of the job include sitting, standing, walking, climbing, lifting floor to waist level at 50 lbs., lifting waist level and above at 10 lbs., carrying objects, push/pull, twisting, bending, reaching forward, reaching overhead, squat/kneel, crawl, wrist position deviation, pinching/fine motor activities, and keyboard use/repetitive motion. (Id. at p.

62.) Defendant presented as evidence DMG letters evidencing a process to determine if modification would be available after receiving the report from Dr. Louis J. Levy Jr. ("Dr. Levy") indicating Plaintiff could not lift over 30 lbs. and needed to avoid repetitive bending, stooping, running, jumping, crawling, and other activities involving comparable physical effort. (Exh. A at DCC-EASON_001787-001794.) DCC-Eason_002570 shows the following time line regarding Plaintiff's Leave:

Though Exhibit

A includes what appears to be emails for job positions, there is no indication that these emails were sent to Plaintiff. (See Exh. A at DCC-EASON_002592-002707.) Exhibit B is the Panel Qualified Medical Evaluation from Dr. Levy Jr with a disability status, which reads, in relevant part, as follows:

DISABILITY STATUS

The only injury that I feel qualifies for disability status is that lower back. My opinion this has reached maximum medical improvement and constitutes a disability precluding heavy work with avoidance of lifting over 30 pounds, avoidance of repetitive bending, stooping, running, jumping, crawling, and other activities involving comparable physical effort.

This disability does not preclude her from returning to work LVN.

[. . .]

FUNCTIONAL ACTIVITY

Although the patient does have a disability precluding heavy work as described above, is my opinion that she can return to work as an LVN without restrictions since her job description not include any of the work restrictions that I have listed.

(Exh. B
at Eason 0301.)

Defendants
assert that their motion is subject to the analytical framework in McDonnell Douglas Corp. v. Green (1992) 411 U.S. 792.

California
appellate courts have laid out the application of the McDonnell Douglas burden-shifting framework in California's summary judgment procedure:

For purposes of evaluating FEHA discrimination claims, California courts have adopted the burden-shifting framework enunciated by the United States Supreme Court in McDonnell Douglas Corp. v. Green (1973) 411 U.S. 792 [36 L. Ed. 2d 668, 93 S. Ct. 1817]. (Zamora v. Security Industry Specialists, Inc. (2021) 71 Cal.App.5th 1, 31 [285 Cal. Rptr. 3d 809] (Zamora).) The framework was originally developed for use at trial. (Id. at p. 32.) When applied at summary judgment, it works as follows: "The 'employer, as the moving party, has the initial burden to present admissible evidence showing either that one or more elements of plaintiff's prima facie case is lacking or that the adverse employment action was based upon legitimate, nondiscriminatory factors.' [Citation.] If the employer satisfies its initial burden, it ""will be entitled to summary [adjudication] unless the plaintiff produces admissible evidence which raises a triable issue of fact material to the defendant's showing. In short, by applying McDonnell Douglas's shifting burdens of production in the context of a motion for summary [adjudication], 'the judge [will] determine whether the litigants have created an issue of fact to be decided by the jury.'"" (Ibid., italics omitted.) Whether summary adjudication is

appropriate “will depend on a number of factors, including the strength of the plaintiff’s prima facie case, the probative value of the proof that the employer’s explanation is false, and any other evidence that supports the employer’s case. [Citation.] However, many employment cases present issues of intent and motive ... [which] ‘are rarely appropriate for disposition on summary judgment, however liberalized [summary judgment standards may] be.’” (Id. at pp. 32–33, italics omitted.)

(Hodges
v. Cedars-Sinai Medical Center (2023) 91 Cal.App.5th 894, 904.)

Plaintiff’s
claims are premised on a refusal to accommodate or provide Plaintiff with other available open positions, or engage in interactive processes, as well as adverse employment actions. (FAC ¶¶ 19-24, First COA ¶ 5, Second COA ¶ 16, Third COA ¶¶ 24-27, Fourth COA ¶¶ 36-37, Fifth COA ¶¶ 44-46.)

The
evidence presented shows that Plaintiff was not subjected to an adverse employment action. as termination was based on the conflict between Dr. Levy’s recommendation and Plaintiff’s job description, and Plaintiff was accommodated in the form of leave and a meeting by DMG to try and see if she could continue her job with her restrictions (i.e., interactive process). However, with the evidence provided, it remains unclear whether Plaintiff was provided with other available open positions.

As this
argument only addresses the First through Fifth Causes of Action, the Fifth through Tenth Causes of Action remain unaddressed by Defendants. Accordingly, their Motion for Summary Judgment is denied.

As to
the burden shifting framework, the argument affects the challenged causes of action as follows:

.
First Cause of Action (Failure to Reasonably
Accommodate Disability (Gov. Code § 12940(m)) – the burden does not shift as it is unclear whether Plaintiff was provided with other open positions;

.
Second Cause of Action (Failure to Engage in the Interactive Process, Gov. Code § 12940(n)) – the burden shifts as Defendants have shown participation in the interactive process through DMG;

.
Third Cause of Action (Disability Discrimination in Violation of Gov. Code § 12940(a)) – the burden does not shift as the allegations of the third cause of action exceed termination and the interactive process and include accommodations, discussed above, and refusal to hire or rehire Plaintiff from following her termination, which remains unaddressed (see FAC at Third COA ¶ 27);

.
Fourth Cause of Action (Retaliation in Violation of Gov. Code § 12940(h)) – The burden does not shift for the same reason as the Third Cause of Action (see FAC ¶ 37); and

.
Fifth Cause of Action (Failure to Prevent Discrimination in Violation of Gov. Code § 12940(k)) – The burden does not shift for the same reason as the Third Cause of Action (see FAC ¶ 49).

Accordingly, Summary Adjudication is denied to the First Cause of Action, Third Cause of Action, Fourth Cause of Action and Fifth Cause of Action.

As to the Second Cause of Action in which the burden shifts, Plaintiff does not dispute that the meeting occurred, that it was to discuss Plaintiff's position and whether her restrictions could be accommodated in that role, with whom the meeting was held, and how it was held. (Pl.'s SSUMF Nos. 15-16.) Plaintiff's opposition is based upon her dispute that the written job description does not comport with the actual duties of the LVN job, among other thing, limit on the weight she needed to lift. (Pl.'s SSUMF No. 17-19[Plaintiff's corrections that she occasionally needed to lift no more than 10 lbs.])

While Plaintiff contends that the meeting with DMG was a sham, there is no evidence to support contention. (Pl's Opp. at F.) The gravamen of Plaintiff's argument for the Second Cause of Action is

that Defendant “ignored the reality of Plaintiff’s job duties” and “ignored Plaintiff’s medical note clearing her to work full duty.” As noted above, Plaintiff does not dispute that the meeting with DMG was to discuss whether her restrictions could be accommodated in her role, Plaintiff presents evidence that raises a triable issue as to whether Defendants engaged in the interactive process in light of her own testimony that she could perform the essential functions of her position, because the lifting burdens were more limited than what was represented in the written job description.

Accordingly, Plaintiff meets her burden to show admissible evidence which raising a triable issue of fact material to the Second Cause of Action. Summary Adjudication as to the Second Cause of Action (Failure to Engage in the Interactive Process, Gov. Code § 12940(n)) is denied.

B.

Eighth Cause of Action (Disability Based Harassment in Violation of FEHA)

Defendants argue that this claim is derivative of the previous First through Fifth Causes of Action and should be summarily adjudicated on the same basis.

The Eighth Cause of Action is based on the following allegation:

Plaintiff while working was subjected to an ongoing and continuous pattern of unwanted harassment based on her disability or perceived disability. The harassment included, but was not limited to, being micromanaged, unfairly criticized, not accommodated, terminated, and other conduct according to proof.

(FAC ¶ 72.)

The allegations of being micromanaged and unfairly criticized have not been discussed by Defendant. (See Moving papers 16:26 [discussion of micromanaging only in the context of Lab. Code § 1102.5].) This action is based on FEHA and, as some of the allegations on which the claim is based remain unaddressed, Defendant has not met its initial burden and the burden does not shift.

Accordingly, summary adjudication is denied to the Eighth Cause of Action (Disability Based Harassment in Violation of FEHA).

C.

CFRA Retaliation and
Discrimination Claims (Sixth and Seventh Causes of Action)

Defendants contend that Plaintiff's CFRA protection expired on August 11, 2022 (UMF No. 22) and, because of this, Plaintiff cannot succeed on her claim under *Rogers v. County of Los Angeles* (2011) 198 Cal.App.4th 480 ("Rogers").

UMF no. 22 concerns the leave that was discussed above. For convenience, the chart regarding leave found in Defendants' Exhibit A is presented below:

The Sixth Cause of Action is based on this leave, which Plaintiff claims is the basis for termination, and the Seventh Cause of Action is based on Defendants' alleged refusal to reinstate Plaintiff to her prior position or a comparable position, and by terminating her employment. (FAC ¶¶ 53-54, 63.)

The elements of a cause of action for retaliation in violation of CFRA are " '(1) the defendant was an employer covered by CFRA; (2) the plaintiff was an employee eligible to take CFRA [leave]; (3) the plaintiff exercised her right to take leave for a qualifying CFRA purpose; and (4) the plaintiff suffered an adverse employment action, such as termination, fine, or suspension, because of her exercise of her right to CFRA [leave].' " (*Bareno v. San Diego Community College Dist.* (2017) 7 Cal.App.5th 546, 560 [internal citations omitted].) To establish a prima facie case for retaliation as required by the first prong of the *McDonnell Douglas* burden-shifting analysis, an employee must show " '(1) he or she engaged in a 'protected activity ...' [such as taking leave for a CFRA-protected purpose,] (2) the employer subjected the employee to an adverse employment action, and (3) a causal link existed between the protected activity and the employer's action.' [Citation.] 'If the employee successfully establishes these elements and thereby shows a prima facie case exists, the burden shifts to the employer to provide evidence

that there was a legitimate, nonretaliatory reason for the adverse employment action.’ [Citation.] If the employer satisfies this prong by producing evidence demonstrating the existence of ‘ ‘a legitimate reason for the adverse employment action, ‘the presumption of retaliation ‘ ‘ ‘drops out of the picture,’ ” ’ [citation], and the burden shifts back to the employee to provide ‘substantial responsive evidence’ that the employer’s proffered reasons were untrue or pretextual.’ [Citation.]” (Ibid. [internal citations omitted].)

The Rogers

Court held that the CFRA’s reinstatement right “only applies when an employee returns to work on or before the expiration of the 12-week protected leave.” (Rogers, supra, 198 Cal.App.4th at 488.)

Here, Defendants

have shown that Plaintiff’s CFRA leave was exhausted on August 11, 2022, and that Plaintiff continued to take leave from August 12, 2022 to September 23, 2022. (See chart above.) Accordingly, Defendant has met its initial burden for the Sixth and Seventh Causes of Action.

The

burden shifts to Plaintiff. Plaintiff does not dispute Defendants’ showing, but argues that Defendants’ evidence is “not material.” (See Pl.’s SSUMF No. 22.)

Plaintiff’s

only argument opposing summary adjudication as to these causes of action is: “Here, Defendants discriminated and retaliated against Plaintiff by failing to reinstate her upon the expiration of her CFRA leave of absence and effectively terminating her employment.” (Opp. at 18:25-26.) Plaintiff cites to Rogers for the elements of CFRA discrimination and retaliation, but fails to address Roger’s limitations for such claims, as discussed above. Plaintiff has not met her burden.

Accordingly,

the Motion for Summary Adjudication is: granted as to the Sixth Cause of Action (Retaliation in Violation of CFRA) and as to the Seventh Cause of Action (Discrimination in Violation of CFRA).

D.

Ninth Cause of Action (Wrongful
Discharge in Violation of Public Policy)

Defendant

argues that Plaintiff's Ninth Cause of Action fails as it is duplicative of the
CFRA claims and should be summarily adjudicated as with the Sixth and Seventh
Causes of Action.

Plaintiff's

opposing arguments state that the Ninth Cause of Action is based on both FEHA
and CFRA claims. Plaintiff's claims for the Ninth Cause of Action rests on the
following allegations:

Plaintiff is informed and believes, and
thereon alleges, that she was wrongfully discharged due to her disability, or
perceived disability. and for engaging in protected activity in violation of
the public policy of the State of California as set forth in the FEHA.

In addition, Plaintiff is informed and
believes, and thereon alleges, that she was wrongfully discharged for
requesting CFRA leave in violation of the public policy of the State of
California as set forth in Gov. C. §§ 12940(h), 12945.2(1).

(FAC ¶¶ 86-87.)

Because the Ninth

Cause of Action is based upon Plaintiff's FEHA claims in addition to her CFRA
claims, the Motion for Summary Adjudication as to the Ninth Cause of Action is denied.

E.

Tenth Cause of Action (Retaliation
for Whistleblower Activities in Violation of Lab. Code § 1102.5)

Defendant

argues that Plaintiff does not claim that she engaged in a protective activity
and even concedes that she did not complain about any wrongful conduct to any
law enforcement agency or anyone affiliated with Defendant before filing this
action. (UMF No. 31.)

UMF No.

31 is based upon Exhibit E at 84:13-84:21. The excerpt from Plaintiff's deposition included in Exhibit E reads:

Q. Prior to the filing of this lawsuit, did you complain to anyone at the hospital about any of the treatment that you were being subjected to relating to your workplace injury or your medical leave?

A. Not that I can recall.

Q. Prior to the filing of this lawsuit, did you make any complaints to any law enforcement agencies regarding anything that happened to you at the hospital?

A. I don't think so.

"Section

1102.6 provides the governing framework for the presentation and evaluation of whistleblower retaliation claims brought under section 1102.5. First, it places the burden on the plaintiff to establish, by a preponderance of the evidence, that retaliation for an employee's protected activities was a contributing factor in a contested employment action. The plaintiff need not satisfy McDonnell Douglas in order to discharge this burden. Once the plaintiff has made the required showing, the burden shifts to the employer to demonstrate, by clear and convincing evidence, that it would have taken the action in question for legitimate, independent reasons even had the plaintiff not engaged in protected activity." (Lawson v. PPG Architectural Finishes, Inc. (2022) 12 Cal.5th 703.)

Defendant

has met its burden by providing evidence that no protective activity occurred; therefore, the burden shifts to Plaintiff.

Plaintiff

does not dispute this argument. (See Pl.'s SSUMF No. 31.) And she states in her Opposition:

Plaintiff is no longer pursuing her tenth cause of action for whistleblower retaliation in violation of Labor Code

section 1102.5 and claims against California Hospital Medical Center Foundation and Dignity Health.

(Id.
at 1:14-16.)

Accordingly, the Motion for
Summary Adjudication is granted as to the Tenth Cause of Action (Retaliation for Whistleblower Activities in Violation of Lab. Code § 1102.5).

F.
Punitive Damages

Defendant argues that Plaintiff
cannot claim punitive damages as it is a corporate entity and Plaintiff has
failed to show that a managing agent of defendant was personally guilty of
oppression, fraud, or malice pursuant to Civil Code section 3294. Defendant asserts that no employee mentioned
was a managing agent that was involved engaged in malice, oppression, or fraud.

Punitive damages in an action for
a breach of duty not arising from contract may be awarded where a plaintiff
proves “by clear and convincing evidence that the defendant has been guilty of
oppression, fraud, or malice”. (Civ. Code § 3294(a).) Oppression, fraud and
malice are defined in section 3294(c) as follows:

(1) “Malice” means conduct which is intended by the defendant
to cause injury to the plaintiff or despicable conduct which is carried on by
the defendant with a willful and conscious disregard of the rights or safety of
others.

(2) “Oppression” means despicable conduct that subjects a
person to cruel and unjust hardship in conscious disregard of that person's
rights.

(3) “Fraud” means an intentional misrepresentation, deceit,
or concealment of a material fact known to the defendant with the intention on
the part of the defendant of thereby depriving a person of property or legal
rights or otherwise causing injury.

Punitive damages with respect to a

corporate employer must be based on the "advance knowledge and conscious disregard, authorization, ratification" by "an officer, director, or managing agent" of the unfitness of an employee "engaging in malice, oppression or fraud, or such conduct was by an officer director or managing agent. (Civ. Code § 3294(b).)

Plaintiff has not presented evidence showing a disputed issue of material fact as to the standard that she must meet to be entitled to punitive damages under Civil Code section 3294. Therefore,

Motion for Summary Adjudication as to punitive damages is granted.

Conclusion

Defendant

Dignity Health, California Hospital Medical Center Foundation and Dignity Community Care dba California Hospital Medical Center's Motion for Summary Judgment is denied.

Defendant

Dignity Health, California Hospital Medical Center Foundation and Dignity Community Care dba California Hospital Medical Center's Motion for Summary Adjudication is granted as to Sixth Cause of Action (Retaliation in Violation of CFRA), Seventh Cause of Action (Discrimination in Violation of CFRA), Tenth Cause of Action (Retaliation for Whistleblower Action in Violation of Lab. Code § 1102.5) and punitive damages; and denied in part as to the First Cause of Action (Failure to Reasonably Accommodate Disability (Gov. Code § 12940(m)), Second Cause of Action (Failure to Engage in the Interactive Process, Gov. Code § 12940(n)), Third Cause of Action (Disability Discrimination in Violation of Gov. Code § 12940(a)), Fourth Cause of Action (Retaliation in Violation of Gov. Code § 12940(h)), Fifth Cause of Action (Failure to Prevent Discrimination in Violation of Gov. Code § 12940(k)), Eighth Cause of Action (Disability Based Harassment in Violation of FEHA), and Ninth Cause of Action (Wrongful Discharge in Violation of Public Policy).

Date: 08/21/2026 _____

William

E. Weinberger

Judge,
Los Angeles Superior Court